of India has the legitimacy since it has been drafted by a constituent assembly consisting of people's representatives. The Constitution of India reflected the consensus of most of the sections of people in India during Independence. There are instances where some countries have subjected their constitution to a full-fledged referendum.

Referendum

A referendum is a method of referring a question or set of questions to the electorate directly rather than allowing them to be settled by the people's representatives in the legislature. The referendum is also often used to determine issues of morality which divide a coalition government of many parties and to settle local matters which it is thought are best left to individual to decide. The referendum is seen as conferring legitimacy and popular approval on an individual and sanctions absolute authority.

Neither Indian Constitution nor the amendments made later were subjected to a referendum, which could also be seen as a setback in Indian democracy perhaps the conditions prevailing at that time were not conducive to a referendum. In this regard, it may be useful to study the working of referendum in Switzerland.

Provisions of a Constitution

An ideal Constitution should accommodate the aspirations of all sections of people in the society. Constitutions that are discriminative based on religion, caste and language may not get overwhelming acceptance from everyone in the nation. The fundamental laws of the structure would reveal the nature of a constitution. Any constitution could be successful only when it preserves the freedom and equality of all its citizens.

Secularism in India

The 42nd Amendment enlarged the Preamble of the Indian Constitution from "Sovereign Democratic Republic" to a "Sovereign Socialist Secular Democratic Republic," and also changed the words "unity of the nation" to "unity and integrity of the nation." Former Prime Minister, Indira Gandhi, enacted the 42nd Amendment in 1976, during the National Emergency.

A well-drafted constitution does not concentrate all powers in a single person or a single institution as it may lead to abuse of power by few or one institution. One method that may be incorporated to address this issue is to divide powers among different organs in a balanced way.

The Indian Constitution separates the power horizontally amongst institutions like the legislature, executive and judiciary. Indian Constitution is not too rigid and not too flexible, which is evident from the restrictions and flexibility in the name of the basic structure of constitution and amending provisions respectively. A well-drafted constitution will maintain the core values and will also adapt itself to changing environment. The Indian Constitution balanced the possibility to not only change the provisions but also limits on such changes. The framers of the Indian Constitution had ensured that it would survive during the test of times.

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